

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
IN AND FOR THE COUNTY OF SAN MATEO**

Special Set Calendar  
Honorable Mark A. McCannon  
1050 Mission Road, South San Francisco, CA 94080  
Department 2, Courtroom K  
8/20/2026 at 9:30 AM

**If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).**

**Failure to comply with notice as outlined will result in no oral presentation.**

**Notice of Appearance and Courtesy Copies**

1. Email [Dept2@SanMateoCourt.org](mailto:Dept2@SanMateoCourt.org) before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:  
[LawAndMotionReplyBriefs@SanMateoCourt.org](mailto:LawAndMotionReplyBriefs@SanMateoCourt.org)

**Day of Hearing**

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

**Remote Appearance Zoom Information**

**RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.**

<https://sanmateocourt.zoomgov.com/>

Meeting ID: 160 135 4419

Password: 845111

Zoom telephone dial-in: +1 (669)-254-5252

**TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.**

9:30 AM

LINE: 1

24-CIV-07657

RICHARD DONOVAN VS. RENNA HU, ET AL

RICHARD DONOVAN  
RENN A HU

JACQUELINE M SIMONOVICH  
PAUL T LLEWELLYN

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PLAINTIFF RICHARD DONOVAN'S MOTION FOR ATTORNEY'S FEES AND COSTS

TENTATIVE RULING:

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Plaintiff's Motion for Attorneys' Fees and Costs is **CONTINUED** to October 15<sup>th</sup>, 2026, at 2:00 p.m.

The motion is continued to permit the Court first to determine Plaintiff's pending Motion to File Additional Attorney Fee Records Under Seal, which concerns billing records submitted in support of the requested attorney-fee award.

If the tentative ruling is uncontested, it shall become the order of the Court.

9:30 AM

LINE: 2

24-CIV-07657

RICHARD DONOVAN VS. RENNA HU, ET AL

RICHARD DONOVAN  
RENN A HU

JACQUELINE M SIMONOVICH  
PAUL T LLEWELLYN

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PLAINTIFF RICHARD DONOVAN'S MOTION TO FILE ADDITIONAL ATTORNEY FEE RECORDS UNDER SEAL

TENTATIVE RULING:

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Plaintiff's Motion to File Additional Attorney Fee Records Under Seal is **CONTINUED** to September 24<sup>th</sup>, 2026, at 2:00 p.m.

The Court is presently unable to determine whether the requested sealing is warranted because the unredacted records that are the subject of the motion are not available for the Court's review. Plaintiff is **ORDERED** to lodge unredacted copies of the documents at issue with the Clerk's Office within five court days of this order for the Court's review in connection with the continued hearing.

If the tentative ruling is uncontested, it shall become the order of the Court.

9:30 AM

LINE: 3

24-CLJ-05151

AMERICAN EXPRESS NATIONAL BANK VS. DALAL ISHAQAT, ET AL

AMERICAN EXPRESS NATIONAL BANK  
DALAL ISHAQAT

AARON N. BALDARO

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**PLAINTIFF AMERICAN EXPRESS NATIONAL BANK'S MOTION TO VACATE THE CONDITIONAL DISMISSAL AND FOR ENTRY OF JUDGMENT**

**TENTATIVE RULING:**

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Plaintiff American Express National Bank's unopposed motion to set vacate the conditional dismissal and enter judgment pursuant to the court's retained jurisdiction under Code of Civil Procedure section 664.6 as agreed in the parties' stipulation against Defendant Dalal Ishaqat is **GRANTED**.

Under Code of Civil Procedure, section 664.6, the court retains jurisdiction in a case pending full performance of the terms of a written settlement agreement and such agreement may then be enforced upon motion of the aggrieved party. (*Id.*)

Here, the parties entered into a stipulated settlement agreement which was filed with the Court on December 5, 2024. A copy of the agreement is attached to the Declaration of Plaintiff's Counsel, Scott D. Dyle, as Exhibit A. The agreement states the parties agree to the Court's retained jurisdiction pursuant to Code of Civil Procedure 664.6. (Declaration of Scott D. Dyle, Ex. A ¶¶ 5, 12, 13, 18 & 21.) The agreement provides that judgment in the amount of \$23,553.56 would not be entered against defendant so long as defendant made monthly payments to plaintiff until defendant paid judgment amount in full. (Dyle Decl. ¶ 5.) In the event of default, the parties agreed that the Court was authorized to enter judgment in favor of the plaintiff and against defendant in the amount of \$23,553.56, less payments received plus court costs incurred. (*Id.*)

The Court finds plaintiff has presented uncontroverted evidence that defendant defaulted because her last payment was November 26, 2024. (Dyle Decl. ¶ 7.) As such, the Court finds plaintiff has established under the terms of the parties' stipulated agreement that plaintiff is entitled to judgment in the amount of \$23,553.56, less credit for payment of \$500, plus costs of \$510 for a grand total of \$23,563.56. (Dyle Decl. ¶ 10.)

Accordingly, the **conditional dismissal filed on December 5, 2024, is SET ASIDE** and plaintiff's motion to vacate conditional dismissal and for entry of judgment pursuant to Code of Civil Procedure section 664.6 as agreed to in the parties' stipulation is **GRANTED**.

Judgment in the amount of **\$23,563.56** shall be entered against defendant and payable to plaintiff upon entry of this order.

Any party who contests a tentative ruling must email Dept.2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

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If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

Posted: 3:00 P.M.

